

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JEROME BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE URIEL
HENRY, Tax No. 941892, DETECTIVE PHILOGENE
BREVILLE, Tax No. 940974, LIEUTENANT GARY
MARCUS, Tax No. 944769, and POLICE OFFICERS
JOHN DOES# 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 25, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
DETECTIVE URIEL HENRY, Tax No. 941892, 69th Precinct Detective Squad, 9720
Foster Ave, Brooklyn, NY 11236
DETECTIVE PHILOGENE BREVILLE, Tax No. 940974, Brooklyn South Warrant
Squad, 65 6th Avenue, Brooklyn, New York 11217
LIEUTENANT GARY MARCUS, Tax No. 944769, 69th Precinct Detective Squad, 9720
Foster Ave, Brooklyn, NY 11236

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JEROME BROWN, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about April 11, 2019, at approximately 8:00 a.m., plaintiff Jerome Brown, while lawfully in the vicinity of 335 Sutter Avenue, Brooklyn, New York, was subject to a unlawful detention, false imprisonment, false arrest, and unlawfully searched by the individually named defendant New York City police officers. Subsequently, the defendant police officers unlawfully detained plaintiff against his will for many hours and subjected plaintiff to unlawful interrogations by defendants, without cause or legal justification and unlawfully forced plaintiff to stand in line-ups against his will, without any legal basis to do so and in violation of his Fourth, Fifth and Fourteenth Amendment Rights and his right to due process under the Constitution of the United States. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, unlawfully searched plaintiff and deprived plaintiff of his due process rights in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and in violation of the Constitution of the State of New York and New York State common law.

PARTIES

2. Plaintiff JEROME BROWN, is a resident of the County of the Kings, State of New York.

3. Defendant DETECTIVE URIEL HENRY, Tax No. 941892 is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

4. Defendant DETECTIVE URIEL HENRY, Tax No. 941892 is and was at all times relevant herein assigned to the 69th Precinct Detective Squad.

5. Defendant DETECTIVE URIEL HENRY, Tax No. 941892 is being sued in his individual and official capacity.

6. Defendant DETECTIVE PHILOGENE BREVILLE, Tax No. 940974 is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

7. Defendant DETECTIVE PHILOGENE BREVILLE, Tax No. 940974 is and was at all times relevant herein assigned to the Brooklyn South Warrant Squad.

8. Defendant DETECTIVE PHILOGENE BREVILLE, Tax No. 940974 is being sued in his individual and official capacity.

9. Defendant LIEUTENANT GARY MARCUS, Tax No. 944769 is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

10. Defendant LIEUTENANT GARY MARCUS, Tax No. 944769 is and was at all times relevant herein assigned to the 69th Precinct Detective Squad.

11. Defendant LIEUTENANT GARY MARCUS, Tax No. 944769 is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. The CITY OF NEW YORK held a 50h hearing on July 22, 2019.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

22. Pursuant to NYS Executive Orders 202.8, 202.14, 202.28, 202.38, 202.48, 202.55, and 202.60 duly executed by NYS Governor Andrew Cuomo related to the COVID-19 health crisis, all claims filed herein are deemed timely filed.

STATEMENT OF FACTS

23. On April 11, 2019, at approximately 8:00 a.m., plaintiff JEROME BROWN was lawfully in the vicinity of 335 Sutter Avenue, Brooklyn, New York when the individually named defendant New York City Police Officers unlawfully stopped, questioned, frisked, searched, handcuffed and arrested plaintiff without legal justification or probable cause.

24. The New York City Police Officers did not have a warrant for plaintiff's arrest, nor did they have probable cause or any legal justification to detain plaintiff.

25. At no time did the defendant police officers recover any illegal drugs, weapons or contraband from plaintiff's person when they unlawfully searched him.

26. At no time did plaintiff commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

27. Nevertheless, the defendant police officers handcuffed plaintiff without legal justification or probable cause.

28. At no point in time did plaintiff resist arrest in anyway.

29. Plaintiff immediately advised the defendant police officers that plaintiff had a medical condition that required that he take seizure medication and advised the defendant police officers that he had not taken his seizure medication yet that day.

30. Instead of allowing plaintiff to take his seizure medication, the defendant police willfully, maliciously, and negligently prevented plaintiff from taking his seizure medication.

31. Defendants placed plaintiff into an NYPD vehicle against his will and transported to the 69th precinct detective squad.

32. Upon arrival at the 69th precinct, plaintiff was put into an interrogation room.

33. Plaintiff was unlawfully interrogated by the defendant police officers and questioned regarding an incident that occurred on April 3, 2019 between several teenage boys.

34. Notably, it will be undisputed in this case that the defendant police officers knew that plaintiff had no involvement in the incident that occurred on April 3, 2019.

35. Further, it will be undisputed in this case that nobody identified plaintiff as being involved in the incident, nor did anyone ever accuse plaintiff of being involved with the incident that occurred on April 3, 2019.

36. On April 11, 2019, at approximately 9:30 a.m., while unlawfully in the custody of the defendant police officers at the 69th precinct Detective Squad, plaintiff began suffering a violent seizure.

37. Notably, plaintiff suffered this seizure because the defendant police officers willfully, maliciously and negligently prevented him from taking his seizure medication despite plaintiff explicitly advising the defendant police officers that he had not yet taken his medication that day and must take the medication to prevent him from having seizures.

38. As a result of the seizure, EMS was called to the 69th Precinct and plaintiff was transported to Brookdale Hospital to received medical treatment for the seizure.

39. While at Brookdale Hospital, plaintiff was examined and was provided seizure medication.

40. Thereafter, plaintiff was discharged from Brookdale Hospital and transported back to the 69th precinct.

41. On April 11, 2019, plaintiff was transported to Brooklyn Central Booking.

42. Thereafter, on April 12, 2019, after being unlawfully held in custody for approximately 24 hours, the District Attorney's Office declined to prosecute plaintiff because there was "insufficient evidence" and he was released from custody.

43. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, interrogation, frisk, search, unlawful seizure, false arrest, false imprisonment, deprivation of due process rights, and violation of the Civil rights of plaintiff.

44. The unjustifiable stop, interrogation, frisk, search, unlawful seizure, false arrest, false imprisonment, deprivation of due process rights, and violation of the Civil rights of plaintiff by the individually named defendants caused plaintiff to sustain serious and permanent, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, unlawfully seized, unlawfully searched, falsely arrested and imprisoned, and deprived of his due process rights, without reasonable suspicion or probable cause or any legal justification, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States, right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

66. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendant police officers, defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION**Failure to Intervene**

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights, common law rights, and rights under the New York State Constitution were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which is therefore responsible for their conduct.

78. Defendant City of New York as the employer of the defendant officers is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligence

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. Defendants owed a duty of care to plaintiff.

81. Defendants breached that duty of care by falsely arresting and falsely imprisoning plaintiff and negligently failing to allow plaintiff to take his seizure medication causing him to suffer a serious seizure while in custody.

82. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

83. All of the foregoing occurred without any fault or provocation by plaintiff.

84. Defendant City of New York, as the employer of the police officer defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Jerome Brown. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

87. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

88. Defendant City of New York as the employer of the officer defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Failure to Provide Medical Treatment

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The defendants owed a duty of care to Mr. Brown to provide him with access to his seizure medication and provide him the proper medications for his numerous medical conditions while he was in the custody and care of the defendant police officers, because under the same or similar circumstances, a reasonable, prudent and careful person should have anticipated that injury to Mr. Brown or to those in a like situation would probably result from the failure to provide access to immediate medical treatment and medications.

91. The defendants failed to provide Mr. Brown with his medications despite being aware of Mr. Brown's medical conditions and the negative physical and psychological consequences that could occur to Mr. Brown if he did not have his seizure medication.

92. The defendants knew, or should have known, that their failure to allow him to take his seizure medication, or provide him with his medications, for an extended period of time could and did exacerbate and worsen Mr. Brown's condition, causing him severe injury.

93. Defendants are responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a direct and proximate result of the misconduct detailed above, Plaintiff sustained the damages hereinbefore alleged.

JURY DEMAND

95. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jerome Brown demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees, inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 25, 2020

By: /s/
STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 25, 2020

/s/
STUART E. JACOBS, ESQ.